

Intellectual Property & Confidentiality Policy

Effective Date: Immediately

Policy Owner: Legal

Approved By: Executive Leadership Team

Applies To: All Employees, Contractors, and Temporary Workers

Review Cadence: Annual

Confidential – Internal Use Only

Purpose

MakeWorkInc’s intellectual property (“IP”), trade secrets, and confidential information are core company assets and critical to competitive advantage.

This policy establishes:

- Ownership principles for work product and inventions
- Employee obligations regarding confidential information
- Standards for protecting proprietary assets
- Post-employment responsibilities

Protection of intellectual property is a material business priority.

Scope

This policy applies to:

- All employees (full-time and part-time)
- Contractors and consultants (subject to contract terms)
- Temporary workers
- Interns

This policy supplements, and does not replace, any signed employment agreement, confidentiality agreement, or invention assignment agreement.

Definitions

Company Intellectual Property

Includes, but is not limited to:

- Software code (source and object)
- Algorithms and product designs
- Documentation
- Product roadmaps
- Trade secrets
- Customer lists and data
- Marketing materials
- Business processes
- Financial models

- Trademarks and branding
- Patentable inventions

Confidential Information

Confidential Information includes any non-public information related to:

- Products or services
- Technology architecture
- Security practices
- Financial information
- Business strategy
- Pricing and contracts
- Customer or vendor data
- Personnel matters

Confidential Information may exist in written, oral, electronic, or other forms.

Ownership of Work Product

Work Made for Hire

To the fullest extent permitted by law, all work product created by an employee within the scope of employment is the sole and exclusive property of MakeWorkInc.

This includes any:

- Inventions
- Developments
- Improvements
- Discoveries
- Designs
- Code
- Documentation
- Processes

created during employment that relate to the company's business or anticipated research and development.

Assignment of Inventions

Employees hereby assign to MakeWorkInc all rights, title, and interest in any inventions or work product that:

- Are developed during employment, and
- Relate to the company's business, products, or research, or
- Result from the use of company time, systems, or confidential information.

Employees agree to execute any additional documentation necessary to confirm or perfect the company's ownership rights.

Pre-Existing Intellectual Property

Employees must disclose any pre-existing inventions or IP prior to or at the time of hire that they intend to exclude from assignment.

Absent written disclosure and acknowledgment by the company, all relevant IP developed during employment may be presumed company property.

Use of Company Resources

Company systems, time, equipment, and confidential information may not be used to develop personal projects, outside business ventures, or third-party IP without prior written approval.

Unauthorized use may result in disciplinary action.

Confidentiality Obligations

Employees are required to:

- Maintain the confidentiality of company information during and after employment
- Use confidential information solely for legitimate business purposes
- Limit disclosure internally to those with a need to know
- Not disclose confidential information to third parties without authorization and appropriate agreements

Confidentiality obligations survive termination of employment.

Third-Party Confidential Information

MakeWorkInc may receive confidential information from customers, partners, and vendors.

Employees must:

- Comply with contractual confidentiality restrictions
- Use third-party data only for authorized purposes
- Protect such information with equal or greater care than company data

Improper handling may create contractual and legal liability.

Open Source Software

Use of open source software must comply with company policy and legal review requirements.

Employees may not:

- Introduce open source code into company repositories without approval
- Violate license terms
- Create exposure that could require public disclosure of proprietary source code

All open source use must comply with the company's Open Source Governance procedures.

Data Handling and Security

Employees must comply with all Information Security and Data Privacy policies when handling:

- Source code
- Production data
- Customer information
- Security credentials

Unauthorized access, copying, or transmission of proprietary materials is strictly prohibited.

External Communications

Employees may not:

- Share proprietary information on social media
- Present internal materials externally without approval
- Respond to media inquiries
- Disclose confidential roadmap or financial information

All external communications must comply with the Social Media and Communications Policy.

Post-Employment Obligations

Upon termination of employment for any reason, individuals must:

- Return all company property
- Delete company data from personal devices (where permitted by law)
- Refrain from retaining copies of proprietary materials
- Continue to honor confidentiality obligations

The company reserves the right to conduct reasonable audits or exit certifications to confirm compliance.

Non-Solicitation and Restrictive Covenants

Where applicable and legally enforceable, restrictive covenants such as:

- Non-solicitation of employees
- Non-solicitation of customers
- Non-competition obligations

will be governed by signed agreements and applicable law.

Enforceability varies by jurisdiction and may require legal review.

Reporting Obligations

Employees must promptly report:

- Suspected IP theft
- Unauthorized disclosures

- Security incidents
- Potential misappropriation

Reports may be made to Legal, People Operations, or through the Whistleblower channel.

Violations

Violation of this policy may result in:

- Disciplinary action, up to and including termination
- Legal action
- Financial liability
- Referral to law enforcement where appropriate

The company will act decisively to protect its intellectual property.

Policy Governance

This policy does not alter the at-will nature of employment where applicable.

MakeWorkInc reserves the right to interpret, amend, or modify this policy at its discretion, consistent with applicable law.

Employees may be required to sign separate confidentiality or invention assignment agreements as a condition of employment.